

Pankaj Katiyar v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 29 August 2017 · WRIT - C No. 20267 of 2007 · **Writ disposed; relegated to EE under cl. 6.5; recovery stayed.**

HEADNOTE

Writ over electricity dues and a 2005 recovery certificate disposed of by sending the consumer to a fresh representation before the Executive Engineer, Kanpur Dehat under Clause 6.5 of the U.P. Electricity Supply Code, 2005, with the recovery kept in abeyance until that representation is decided.

FACTUAL SUMMARY

Pankaj Katiyar petitioned the Allahabad High Court against U.P. Power Corporation Ltd. over a dispute about payment of electricity dues. A recovery certificate dated 19 September 2005 had been issued against him. The writ was listed several times in 2017—passed over on counsel's illness slip, listed to show respondents' counsel, and adjourned for reconstruction of the Corporation's file—before being heard on 29 August 2017. Counsel for the Corporation submitted that under Clause 6.5 of the U.P. Electricity Supply Code, 2005 the dispute was referable to the Executive Engineer, Kanpur Dehat.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

A small dispute over payment of electricity dues, for which a recovery certificate has been issued, is referable to the concerned Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer may file a fresh representation with details to that authority within one month; the Engineer shall decide it within two months of production of a certified copy of the order. Till then the recovery certificate remains in abeyance. The writ is disposed of without deciding the dues on merits. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DUES DISPUTE AND VALIDITY OF THE RECOVERY CERTIFICATE DATED 19.9.2005

Left to the Executive Engineer on a fresh representation under Clause 6.5. ¶ 4